Parliament

1. Structure and representation

- **Parliament = President + Rajya Sabha (RS) + Lok Sabha (LS), Article 79; Part V, 79–122.** President belongs to neither House, but assent, summoning/prorogation, LS dissolution, addresses/messages and ordinances link the office to Parliament.
- **LS:** popular/lower/first chamber, represents the people. **RS:** federal/upper/second chamber, represents States/UTs and brings nominated expertise. Hindi names adopted in **1954**; both Houses first constituted in **1952**.
- **British model:** Crown + Lords + Commons; executive–legislature interdependence. **US Congress:** Senate + House of Representatives; President outside legislature. India's parliamentary model is often called **Westminster**.
- **RS maximum 250 = 238 elected + 12 nominated. Allocated strength 245 = 225 State + 8 UT + 12 nominated**; vacancies can reduce actual membership. **Fourth Schedule** allocates seats; representation is unequal, broadly population-based (UP 31; Tripura 1), unlike US Senate's two per State.
- State RS representatives elected by **elected MLAs**, using **proportional representation–single transferable vote (PR–STV)**. Delhi, Puducherry and J&K have allocated RS representation; UT representatives chosen under the statutory electoral-college system. RS elections use **open ballot**, unlike the secret presidential ballot.
- President nominates **12 RS members** for special knowledge/practical experience in **literature, science, art and social service**; sports is not separately listed. US Senate has no nominated members.
- **LS constitutional ceiling 550 = up to 530 State + up to 20 UT seats; allocated elected seats 543 = 524 State + 19 UT.** Direct territorial elections; UT direct elections governed by the **1965 Act**.
- Adult suffrage: eligible Indian citizen **18 or older**; **61st Amendment, 1988**, lowered voting age from 21. Candidate age is different: LS 25, RS 30.
- **Anglo-Indian nomination ceased on 25 January 2020**: 104th Amendment (2019) did not extend it. Old maximum **552** included two nominees. Anglo-Indian definition refers to European paternal ancestry, Indian domicile and habitual-resident parentage; this is historical constitutional context, not a present nomination route.

2. LS elections, delimitation and reservation

- **Single-member constituencies + first-past-the-post (FPTP):** candidate with **most votes** wins; need not obtain over 50%. Advantage: clear territorial link and simple ballot. Limitation: seat share may diverge from vote share/minority representation.
- **PR:** seeks representation closer to vote shares; major models STV and party lists. RS/Legislative Councils use STV; presidential/VP elections use preferential STV for a single office, not a party-list system.
- Chapter's reasons against LS PR: complexity/low literacy at framing and risk of fragmented governments. Other textbook criticisms: cost, weaker constituency link, party/group dominance and difficulty organising by-elections. **Not universal defects of every PR model**; RS vacancies, for example, are filled by bye-elections.
- **81:** seat–population ratio broadly uniform between States; exception for States under **six million** population. Constituency–population ratios broadly uniform within a State.

- **82:** census-based readjustment by authority/procedure Parliament provides. Delimitation Acts: **1952, 1962, 1972, 2002**.
- **42nd Amendment, 1976:** froze allocation/boundaries at 1971 level. **84th, 2001:** extended allocation freeze and allowed boundary rationalisation with 1991 data. **87th, 2003:** substituted **2001 census** for boundary/SC–ST seat readjustment, without changing State-wise LS seat allocation.
- Allocation freeze is tied to publication of figures of the **first census after 2026**; it does **not automatically end on 1 January 2027**. Special statutory delimitation exercises must be distinguished from a nationwide reallocation of seats.
- **SC/ST reserved seats:** broadly proportionate to their population; all eligible constituency voters vote, not separate electorates. Eligible SC/ST candidates can also contest general seats, subject to statutory qualifications. **104th Amendment extended reservation to 2030**.
- **106th Amendment, 2023:** one-third women's reservation in LS, including within SC/ST reserved seats; also State Assemblies and Delhi Assembly. **330A/334A:** operation depends on delimitation after publication of relevant first post-amendment census figures; not immediate reservation in every election. RS is excluded. Official constitutional text.

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3. Duration, qualifications and disqualification

- **RS permanent; never dissolved.** Members normally **six years**, approximately one-third retire every two years; unlimited re-election/renomination. Term fixed by **RPA 1951**, not directly by Constitution. First retirement batches determined by lot; **1952 Term of Office Order**.
- **LS five years from first meeting**, unless earlier dissolved. During National Emergency, Parliament may extend by law **one year at a time**, never beyond **six months after Emergency ends**. Fifth LS was extended twice in 1976 but dissolved **18 January 1977**, after five years, ten months and six days. Dissolution is not categorically immune from constitutional judicial review.
- **84 eligibility:** Indian citizen; election-stage allegiance/sovereignty-integrity oath before ECI-authorised person; LS 25/RS 30; parliamentary statutory qualifications. Must be registered parliamentary elector. RS candidate's **same-State residence/elector requirement removed in 2003**, upheld in **Kuldip Nayar, 2006**.
- Reserved-seat qualifications arise under RPA: chapter's broad SC/ST rule has **special State/tribal-area exceptions**; do not assume any SC/ST member can contest every reserved seat nationwide.
- **102 disqualifications:** office of profit (ministership excepted; Parliament can exempt offices); unsound mind declared by competent court; undischarged insolvency; non-citizenship/foreign citizenship or allegiance; statutory disqualification.
- **RPA disqualifications:** specified convictions/electoral offences/corrupt practices; other convictions carrying **at least two years' imprisonment**; failure to lodge election expenses; specified government contracts; managing agent/manager/secretary in a company with **government share ≥25%**; dismissal for corruption/disloyalty; specified social offences, including untouchability/dowry/sati. Not every ordinary directorship or economic interest automatically disqualifies; preventive detention alone is not conviction-based disqualification.
- **103:** President decides post-election 102(1) disqualification questions **according to ECI opinion**; constitutional review remains possible. Election petitions concerning invalid election go to **High Court**, with appeal to SC.
- **Defection, Tenth Schedule:** voluntarily giving up party membership; voting/abstaining against party direction without permission (unless condoned within **15 days**); independent member joining a party; nominated member joining after **six months from taking seat**. Presiding officer decides; **Kihoto Hollohan, 1992**, permits judicial review. Merger protection requires **at least two-thirds** of legislature party; old one-third split exemption removed.

4. Vacant seats, oaths and remuneration

- Both Houses: cannot retain dual membership; on simultaneous election intimate choice within **10 days**, otherwise RS seat becomes vacant. Existing member elected to other House vacates earlier seat; elected to two constituencies must choose or lose both under statutory rules.
- Parliament + State legislature: parliamentary seat falls vacant unless State seat resigned within **14 days**, as computed under applicable rules.
- **101:** disqualification; written resignation to Speaker/Chairman, effective upon acceptance (must be voluntary/genuine); House may declare vacancy after **60 days' unauthorised absence**. Exclude prorogation and adjournments over four consecutive days in calculating absence.
- Other vacancies: election voided, expulsion, election as President/VP or appointment as Governor.
- **99 membership oath:** before President/appointed person; Constitution allegiance, sovereignty/integrity and faithful discharge. Distinguish election-stage oath from oath before taking seat.
- **104 penalty ₹500 per day:** knowingly sitting/voting before required oath, while unqualified/disqualified or legally prohibited. Chapter OCR can misread this as ₹7,500.
- **106:** Parliament fixes pay/allowances; pension is statutory, introduced **1976**, not constitutional entitlement. **1954 MP Act**, **1953 Officers of Parliament Act**.
- **Updated rates, effective 1 April 2023:** monthly MP salary **₹1,24,000**; daily allowance **₹2,500**; constituency allowance **₹87,000/month**; office expenses **₹75,000/month**; base ex-MP pension **₹31,000/month**, additional **₹2,500/month per year beyond five years**. These replace chapter's ₹1 lakh/ ₹2,000/₹70,000/₹60,000/₹25,000/₹2,000 figures. Periodic revision uses **Cost Inflation Index**. Ministry of Parliamentary Affairs.
- Travel, accommodation, communication and medical facilities governed by law/rules. Presiding officers' salaries/allowances **charged on Consolidated Fund**, not annually voted. RS Chairman salary **₹4 lakh/month** (2018 amendment, effective 1 January 2016); other officers' salary linked to MPs. Chapter's sumptuary figures—Speaker ₹2,000, deputies ₹1,000/month—are separate statutory allowances, not salary totals.

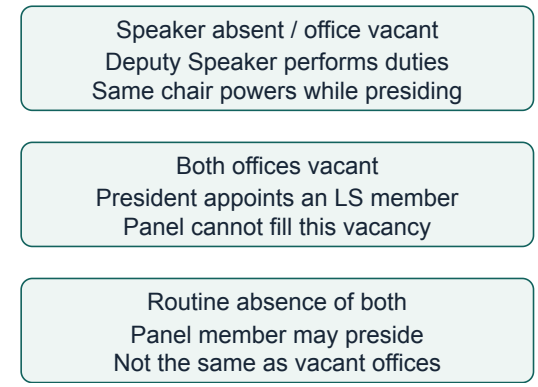
5. Speaker and Deputy Speaker

- **LS elects both from its members, as soon as may be.** President fixes Speaker election date; Speaker fixes Deputy election date. No additional office oath beyond MP oath.
- Vacate on ceasing LS membership, resignation (Speaker → Deputy; Deputy → Speaker), or removal by **majority of all then members = effective majority**, after **14 days' notice**. Speaker-removal leave requires **50 supporting members** under LS rules.
- **Speaker survives dissolution until immediately before new LS's first meeting.** Deputy is responsible to House, not subordinate to Speaker; acts when Speaker absent/office vacant; has chairmanship privilege when appointed to a parliamentary committee.
- Speaker maintains order/decorum; interprets constitutional/rule provisions **within House**; admits business/secret sittings, enforces quorum, supervises committees, appoints their chairpersons under rules, certifies Money Bills, decides defection cases and chairs joint sittings.
- Ex-officio chair: **Business Advisory, Rules, General Purposes Committees**, Indian Parliamentary Group and presiding officers' conference.

- Normally **no first-instance vote; casting vote on tie**. During consideration of **own removal**, Speaker cannot preside but may speak/participate and **vote initially, not cast tie-breaking vote**. Deputy while not presiding is an ordinary voting MP.
- Independence safeguards: protected tenure; charged remuneration; criticism of conduct through substantive motion; Article 122 protection for procedural irregularity; impartial chair/casting vote; **seventh precedence rank with CJI**. Judicial review of substantive illegality/unconstitutionality still exists.
- UK Speaker conventionally leaves party; no fully established equivalent in India. Opposition Deputy Speaker is a convention, **not a constitutional entitlement**. Ruling-party membership does not excuse partisan adjudication.

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6. Panels, pro tem, RS chair and secretariats



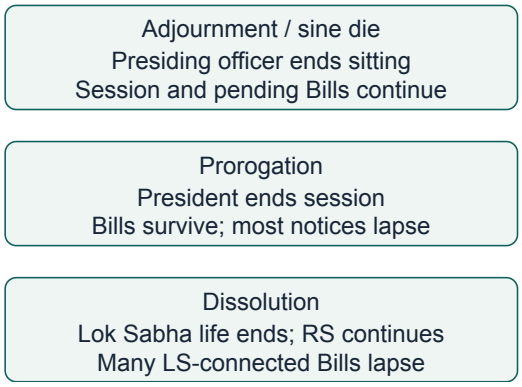
Distinguish absence from vacancy.

- **LS panel ≤10 chairpersons**, nominated by Speaker; members preside when Speaker/Deputy absent. Panel powers while presiding match chair. If both offices vacant, **President appoints a member under 95**, not ordinary panel substitution. If only Speaker vacant, Deputy performs duties.
- **Speaker pro tem:** President appoints member (usually senior by parliamentary service); administers oath; pro tem administers new MPs' oaths and facilitates Speaker election. Temporary, ending once Speaker elected; seniority selection is convention.
- **RS Chairman = VP**, not RS member. Similar presiding powers, but **cannot certify LS Money Bills or chair joint sitting**. Normally casting vote only; when own removal considered, may speak/participate but **cannot vote at all**.
- **Deputy Chairman:** RS elects from its members; removal effective majority +14-day notice; resignation to Chairman; office ends on ceasing RS membership. Acts when Chairman absent or VP acts as President; directly accountable to RS.
- RS Chairman acting President stops chair duties and receives presidential remuneration, not both salaries. RS panel of vice-chairpersons handles absence; **both Chairman/Deputy offices vacant → presidential appointee**, not routine panel.
- **98:** separate secretarial staff, possible common posts; recruitment/service regulated by law. Each secretariat headed by **Secretary-General**, appointed by its presiding officer; administrative continuity rather than party leadership.
- Historical offices: **1919 Act → Speaker/Deputy institution in 1921** (then President/Deputy President of Legislative Assembly): Frederick Whyte / Sachidanand Sinha. **Vithalbhai Patel, 1925:** first Indian/elected presiding officer. 1935 Act envisaged new names; older names used until 1947 because federal provisions not implemented. **G.V. Mavalankar / M. Ananthasayanam Ayyangar:** first LS Speaker/Deputy, 1952; Mavalankar also chaired Constituent Assembly (Legislative)/Provisional Parliament, 1946–1952.

7. Leaders, Opposition and whips

- **Leader of LS:** PM if LS member, otherwise PM-nominated LS minister. **Leader of RS:** PM-nominated RS minister. Coordinates House business; deputy may be nominated. US analogue: majority leader.
- **Leader of Opposition:** leader of numerically largest opposition party recognised by presiding officer; constructive scrutiny and alternative leadership. Recognition first **1969**; statutory pay/status under **1977 Act**, Cabinet-minister-equivalent facilities. Neither leader office specified in Constitution; House leader in rules, Opposition leader in statute.
- **10% trap:** chapter discusses party-recognition directions; **1977 Act does not itself prescribe 10% as LoP definition**. Do not confuse party/group facilities thresholds, quorum and statutory LoP recognition. Equal-strength opposition parties: chair recognises one leader considering party status.
- UK **Shadow Cabinet:** Opposition portfolio counterparts prepare alternative government; Ivor Jennings called Opposition leader alternative PM. US analogue: minority leader.
- **Whip:** party-appointed floor organiser, secures attendance/voting discipline; based on conventions, not a named constitutional office. Defection consequences depend on Tenth Schedule, not every disciplinary breach.
- Government business traditionally coordinated by Parliamentary Affairs Minister in LS and MoS in RS. **1998 Facilities Act:** recognised party strength **LS 55 / RS 25**; recognised group **LS 30 / RS 15**; telephone/secretarial facilities. These thresholds are for this Act.

8. Sessions and ending parliamentary business



Three different endings and their effects.

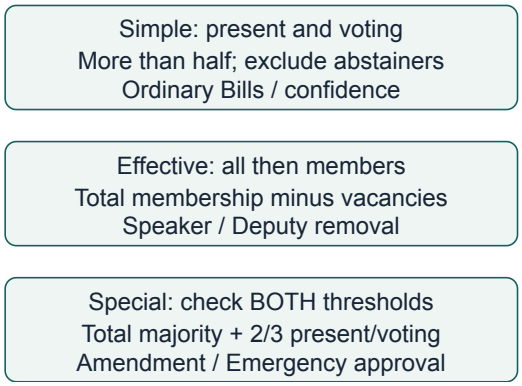
- **85:** President summons; maximum **six months between last sitting of one session and first of next**. Usual Budget (roughly February–May), Monsoon (July–September), Winter (November–December); calendar/timings vary.
- **Session:** first sitting → prorogation (or LS dissolution); **recess:** between sessions. Sittings within a session may be adjourned for hours/days/weeks.
- **Adjournment:** chair ends/suspends sitting to a specified time. **Sine die:** no reassembly date; chair may recall. Neither ends session or lapses Bills.
- **Prorogation:** President ends session, can occur even while House sitting. Pending Bills and moved motions/resolutions do not lapse solely for this reason; pending notices generally lapse except intention to introduce Bills, under applicable rules.
- **Dissolution:** ends LS itself—normal expiry or earlier presidential dissolution. RS never dissolved. Most LS business lapses; government assurances continue for examination.

- **Bills that lapse:** pending in LS (wherever originated); LS-passed but pending in RS. **Do not lapse:** RS-pending and not LS-passed; passed both Houses awaiting assent; returned for reconsideration; deadlocked Bill where President notified joint-sitting intention **before dissolution**.
- **Lame-duck session:** outgoing LS meeting after election of successor before its constitution; unsuccessful outgoing members called lame ducks. Historical **1957/1962** sessions passed votes on account; not a regular post-dissolution sitting.

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9. Quorum, voting, language and majorities

- **100 quorum = one-tenth total membership**, chair included; at allocated 543/245 seats, **LS 55 / RS 25**. No quorum → chair adjourns/suspends until restored. Vacancy/unauthorised participation does not automatically invalidate every proceeding.
- **Voice vote:** Ayes/Noes, chair declares result. Challenged decision → lobby-clearing/repeated question and **division** if required; automatic recorder, Aye/No slips or lobby division. **Physical count** may replace unnecessary division without names recorded. Slips useful on equipment failure/before assigned seats; lobby method largely obsolete in practice.
- Ordinary division display: green Aye, red No, yellow abstain; secret mode may display only recording status. **Not all votes are secret**. Casting vote resolves a tie, subject to own-removal exceptions.
- **120:** Hindi/English business; chair can permit mother tongue. Interpretation facilitates participation; translation supplied where unavailable. **Official Languages Act 1963** continued English beyond original 15-year period.
- **88:** ministers/Attorney-General may participate in either House, joint sittings and nominated committees. This gives **no additional vote**: minister votes only in House of membership; non-MP minister/AG does not vote through this entitlement.



President impeachment separately needs two-thirds total.

- **Simple:** more than half **present and voting**; abstentions excluded. Ordinary/Money/Financial Bills, confidence/no-confidence, censure, adjournment, thanks; Speaker/Deputy elections; RS Deputy election; 356/360 approvals; LS disapproval of National Emergency; LS agreement to VP removal.
- **Effective:** more than half **all then members** (total minus vacancies); removes LS Speaker/Deputy, RS Deputy Chairman; RS initiates VP removal. Examples: RS 245−25 =220 → **111**; LS 543−15 =528 → **265**.
- **Absolute:** more than half total membership irrespective of absence/vacancies; examples 543 →272, 245 →123. Usually a component of special threshold, not standalone rule for routine votes.
- **Special A:** majority total membership **and at least two-thirds present/voting**, separately each House: 368 amendments; SC/HC judges, CAG/CEC removal; SEC protection equivalent to HC judge; National Emergency approval.

- **Special B: at least two-thirds TOTAL membership of each House** for President impeachment. **Special C: at least two-thirds present/voting in RS** for 249 State-List authorisation and 312 All-India Service resolution. Some 368 amendments also require **at least half the States' ratification**.

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10. Questions and devices without voting

- **Question Hour:** accountability through questions; usual **LS 11–12; RS 12–1**, not universally first hour. RS procedure.
- **Starred:** oral answer + supplementary questions; list green. **Unstarred:** written answer, no supplementary; white. **Short notice:** urgent, notice **under ten days**, oral; light pink. **Private-member questions:** their Bill/resolution/business; yellow.
- **Zero Hour:** urgent public matters with chair permission; convention/Indian innovation since **1962**, not a separate formal Rules heading. Usually after LS Question Hour; RS morning Zero Hour precedes noon questions. No automatic right to interrupt business.
- **Calling attention (1954):** urgent matter → authoritative ministerial statement; Indian innovation **in Rules**, unlike Zero Hour convention; not confidence vote.
- **Half-hour discussion:** elucidates factual issue in an answer; no formal motion/vote (chapter practice up to three days/week). **Short-duration discussion (1953):** urgent public importance, usually two hours; no formal motion/vote (chapter practice two days/week); duration is subject to House arrangements.
- **Point of order:** identifies relevant rule/constitutional procedural violation; chair decides, no debate; cannot be a general policy speech.
- **Special Mention in RS / Rule 377 in LS:** public issues outside normal question/discussion channels, subject to prescribed procedure.

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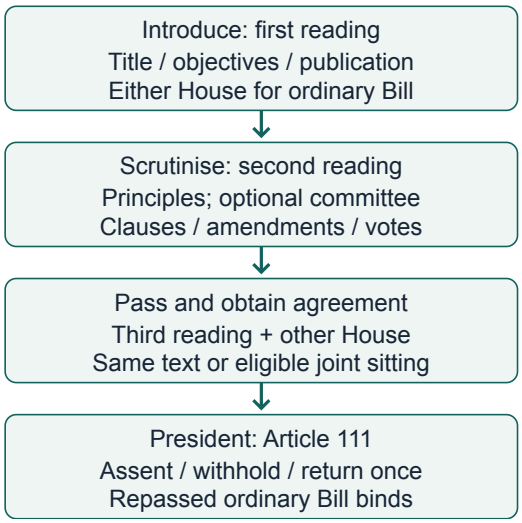
11. Motions, resolutions and executive confidence

- **Substantive:** independent proposal (e.g., removal). **Substitute:** alternative replaces original if adopted. **Subsidiary:** depends on main business—**ancillary** procedural step; **superseding** displaces current matter; **amendment** modifies part.
- **Closure:** simple—enough debate, vote now; **compartments**—grouped clauses; **kangaroo**—selected important clauses, intervening ones treated as passed; **guillotine**—remaining business put to vote at allotted time's end.
- **Privilege motion:** alleged breach, e.g., minister deliberately withholding/misstating facts; not automatically proof of breach.
- **Adjournment motion, LS only:** extraordinary interruption for **definite, factual, recent, urgent public matter**, Union responsibility; leave support **50**, debate minimum **2½ hours**. One matter; not privilege/sub judice/revival of same-session debate or issue needing distinct motion. Has censure element; distinct from ordinary adjournment of sitting.
- **No-confidence, LS only:** entire Council; **50** supporters for leave; no reasons necessary. Passage → whole ministry resigns. **Confidence motion:** government proves majority; failure defeats ministry.
- **Censure:** specific reasons/policies; may target minister/group/Council; passage **does not automatically require resignation**. RS can criticise government but cannot dismiss Council through no-confidence.
- **Motion of Thanks:** debate President's address after general election and at first session of each **year**, not specifically fiscal year. Address sets government programme; LS rejection signals loss of confidence; RS rejection alone cannot remove Council.

- **No-day-yet-named:** admitted but discussion day unassigned; chair/House leader/BAC scheduling. **Dilatory:** postpone debate/delay business; chair can reject abuse; debate restricted to delay issue.
- **Resolution:** independent proposal expressing opinion/approval/disapproval/recommendation/request; mover withdraws only with House leave. **All resolutions are substantive motions; not all motions are resolutions or require votes.**
- **Private member** = any MP other than minister, including governing-party MP; private resolutions traditionally alternate Friday afternoons. **Government resolutions** cover policies, treaty approval or committee recommendations; **statutory resolutions** required by Constitution/Act, moved by minister or eligible private member.
- **Youth Parliament:** Fourth All-India Whips Conference recommendation; Parliamentary Affairs Ministry promotes procedural literacy, discipline/tolerance and democratic values.

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12. Ordinary Bills: readings to assent



An ordinary Bill becomes law after assent.

- **Government/public Bill:** minister, departmental drafting with Law Ministry; generally seven-day introduction notice. **Private-member Bill:** non-minister, member drafts; generally one month notice. Chances of passage differ; rejection of a government Bill **is not invariably automatic resignation**—confidence context matters.
- Content types: original, amending, consolidating, expiring-law continuance, repealing, validating, ordinance-replacing, constitutional amendment and Money/Financial Bills.
- **First reading:** introduction/title/objectives, publication; prior Gazette publication authorised by Speaker may dispense with leave. Introduction may face permitted objections; “no discussion ever” is too absolute.
- **Second reading:** principles/general discussion → optional referral to select/joint/standing committee or circulation for public opinion → clause-wise consideration/amendments/votes. Select = one House; joint = both. **Committee referral is not automatic for every Bill.**
- **Third reading:** accept/reject whole Bill; mainly confined debate, no substantive clause amendments; formal/verbal correction allowed under rules. Simple majority ordinarily passes it; transmit to other House for corresponding stages.
- Other House: pass unchanged, amend, reject or hold pending. Agreement on identical text needed, or **108 joint sitting** where available. **Six months is a deadlock trigger, not an automatic maximum detention/expiry period**.

- **111 assent:** assent → Act; withhold → no Act; return ordinary Bill once. Repassed by both Houses with/without amendment → assent required. Constitutional amendment duly passed → mandatory assent under 368; cannot return it. Ordinary Bill may require prior recommendation under special provisions (e.g., 3), not merely because it is ordinary.

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13. Money Bills versus Financial Bills

- **110 Money Bill contains ONLY:** tax imposition/abolition/remission/alteration/regulation; Union borrowing/guarantees/financial obligations; custody/payment into/withdrawal from CFI or Contingency Fund; CFI appropriation; declaring/increasing charged expenditure; CFI/Public Account receipts/custody/issue or audit of Union/State accounts; incidental matters.
- **Not Money Bill merely for:** fines/pecuniary penalties; licence/service fees; local-body taxes for local purposes.
- Speaker certifies when sent to RS/President; 110(3) calls decision final, but **constitutional judicial review is not barred**. Rojer Mathew, 2019.
- **Money Bill:** LS only, presidential recommendation, government/minister route; RS may **recommend**, cannot impose amendments/reject; return within **14 days**. LS accepts/rejects any recommendation. No return by day 14 → deemed passed in LS form. **No joint sitting**. President may assent/withhold, **cannot return**.
- **Financial I, 117(1):** 110(1)(a)–(f) subject(s) **plus other substantive matters**; LS introduction only + recommendation. RS otherwise equal amendment/rejection power; joint sitting possible; President can return. Tax reduction/abolition amendment exempt from recommendation requirement under 117(1).
- **Financial II, 117(3):** involves CFI expenditure but is not a Money Bill/117(1) Bill; **either House introduction without recommendation**, but recommendation for consideration needed **before that House passes**. RS equal; joint sitting possible; return possible.
- **All Money Bills are financial in broad sense; not all Financial Bills are Money Bills.** “Finance Bill” is an annual fiscal Bill's name; classification depends on contents and constitutional provisions, **not title alone**.

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14. Joint sitting: deadlock route

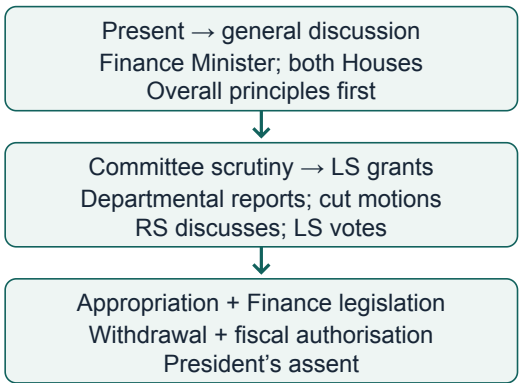
- **108 triggers:** other House rejects; final disagreement on amendments; **more than six months** from receipt without passage. Exclude prorogation/adjournment over four consecutive days when computing delay.
- Available for **ordinary/Financial I/Financial II**, **not Money/constitutional amendment Bills**. President notifies intent and summons; Houses stop further separate proceedings on Bill after notification.
- Lapsed Bill cannot be revived by new notification. If notification precedes LS dissolution, joint sitting can proceed despite dissolution.
- Chair sequence: **LS Speaker → LS Deputy → RS Deputy Chairman → member chosen by those present**. RS Chairman never presides. **Quorum one-tenth combined membership; simple majority present/voting**, LS rules apply. Numerical LS advantage is likely, not guaranteed party victory.
- New amendments limited to resolving disagreements or those necessary because of delay; not unrestricted rewriting.
- **Three historical joint sittings:** Dowry Prohibition Bill **1961** (Bill 1960); Banking Service Commission (Repeal) **1978** (Bill 1977); Prevention of Terrorism **2002**. Distinguish Bill year from sitting year.

15. Budget: documents and constitutional control

- **112 Annual Financial Statement (AFS)** = estimated Union receipts/expenditure; “budget” not constitutional term. Financial year **1 April–31 March**; distinguish revenue expenditure from other expenditure; charged from voted spending.
- Includes revenue/capital receipts, financing/tax measures, expenditure estimates, actual/revised figures and fiscal policy/new proposals. **AFS ≠ entire collection of budget documents**.
- Main documents: Budget Speech, AFS, Demands for Grants, Finance Bill; FRBM macro-economic framework/fiscal-policy strategy/medium-term fiscal-policy statements; Receipts/Expenditure Budgets, Expenditure Profile, memorandum on Finance Bill, Budget at a Glance, output–outcome framework, key features, previous-announcement implementation and document key. **Economic Survey** usually precedes Budget; separate analytical report.
- Railway Budget separate **1924**, following **Acworth Committee 1921**: commercial flexibility/business policy, stable general-revenue contribution and retained development funds. **Merged with Union Budget from 2017–18**; budget presentation advanced to **1 February** from February-end practice.
- **113:** President recommends demands; **only LS votes grants**, may approve/refuse/reduce, not increase demand. RS discusses; charged spending discussable, **not voted**.
- **114:** CFI withdrawal requires appropriation by law. **265:** tax needs authority of law. 117 recommendation safeguards taxation: Parliament can legislate higher taxes with required recommendation; book's blanket “cannot increase a tax” is incorrect.
- Appropriation amendment cannot vary amount/destination of an approved grant or charged amount. Money Bill 14-day rule applies to qualifying Bills, **not every fiscal Bill**.

16. Charged expenditure and the budget sequence

- **CFI charged:** President's emoluments/office; parliamentary presiding officers' salaries/allowances; SC judges' salaries/allowances/pensions; **HC judges' pensions** (salary normally State fund); CAG salary/allowances/pension; UPSC members/staff/administration under 322; SC/CAG office administration under relevant provisions; Union debt-service charges; sums satisfying court/arbitral judgments/decrees/awards; other constitutionally/statutorily charged expenditure.
- **Charged ≠ outside budget, discussion, audit or appropriation.** Regular MPs' pay is not charged merely because presiding officers' pay is.



Budget scrutiny precedes legal spending authority.

- **Presentation:** Finance Minister speech in LS, papers laid in both; no same-day budget discussion. **General discussion:** principles/whole budget, no cut motions or grant votes; Finance Minister replies.

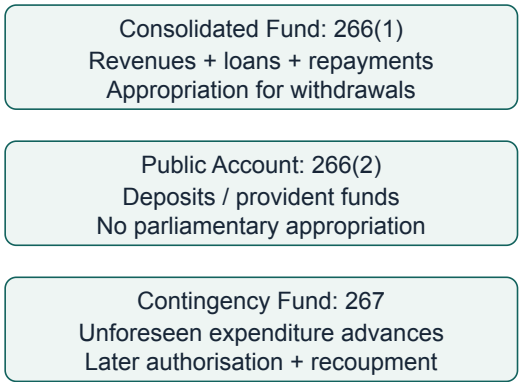
- **Committee scrutiny:** recess commonly 3–4 weeks; **24 department-related standing committees**, established 1993, expanded 2004, report on ministry demands to both Houses. Reports aid scrutiny; do not replace LS votes.
- **Grant voting:** ministry-wise, only voted expenditure in LS. **Policy cut → reduce TO ₹1**; alternative policy possible. **Economy cut → reduce BY specified amount**; **token cut → reduce BY ₹100**, specific Union grievance.
- Cut-motion limits: one demand/specific issue, clear expression; no defamatory argument, proposed law amendment/repeal, non-Union issue, charged spending, sub judice matter or privilege question. Passage may indicate lost confidence; guillotine puts undiscussed remaining demands to vote on allotted last day.
- **Appropriation Bill:** covers voted grants **plus charged spending**; passage and assent authorise CFI payments. **Finance Bill:** implements tax/revenue proposals; tax amendments governed by recommendation rules; its constitutional category depends on contents.
- **75-day trap:** chapter cites repealed **Provisional Collection of Taxes Act 1931**. **2023 Act replaced it**; the 75-day rule concerns expiry of specified provisionally collected **customs/excise** measures unless enacted/otherwise terminated—not a universal constitutional deadline for every Finance Bill. 2023 Act.

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17. Grants beyond the regular budget

- **Vote on account, 116:** advance expenditure grant pending final budget; usually two months/one-sixth annual estimate, longer election-year cover possible. It is a grant requiring appropriation, not unilateral executive spending authority.
- **Interim Budget ≠ vote on account:** interim statement covers receipts and expenditure; vote on account authorises temporary expenditure. Incoming government later presents regular budget. Earlier February presentation helps finish regular appropriation before new financial year; vote on account is still constitutionally available.
- **Supplementary:** approved amount insufficient for existing service. **Additional:** new service not contemplated in year's budget. **Excess:** already spent beyond grant; voted afterward, with **PAC scrutiny** before parliamentary regularisation.
- **Vote of credit:** unexpected large/indefinite demand not readily itemised; metaphorical “blank cheque”, still parliamentary authority. **Exceptional grant:** special purpose outside current service of financial year.
- **Token grant:** nominal grant for new service funded by **reappropriation**, not additional net expenditure; differs from token **cut** opposing a demand. Parliamentary financial procedure still applies.
- **Annuity/rule of lapse:** unused annual authorisations lapse at year-end; discourages unauthorised reserves but can cause **March rush**. Not all money physically disappears or every Public Account balance lapses.

18. Three Union funds



Three funds have different purposes and procedures.

- **CFI, 266(1):** revenues, loans raised, repayments of loans received; parliamentary appropriation for withdrawal. “All receipts” is too broad because Public Account/Contingency arrangements differ.
- **Public Account, 266(2):** other public money, e.g., provident funds, deposits, remittances; government often acts as banker/trustee. Payments do not require parliamentary appropriation; legal/accounting controls remain.
- **Contingency Fund, 267:** imprest established by **1950 Act**, at President's disposal; unforeseen expenditure advances pending parliamentary authorisation, then recouped. Held/operated through Finance Ministry on President's behalf; executive advance **does not avoid later appropriation**.

19. Parliament's functions and limits of control

- **Legislative:** Union/residuary and Concurrent subjects; federal conflict rules include 254(2) exception. Chapter counts Union 98/Concurrent 52/State 59 are descriptive counting conventions; learn operative entries, not assume sequential entry numbers equal surviving total.
- State-List routes: **249 RS resolution; 250 National Emergency; 252 two+ States request; 253 treaty implementation; 356 President's Rule**. Different duration/application rules; not all such Union laws are temporary.
- **Delegated legislation:** legislature lays policy/framework; executive makes rules within parent Act; parliamentary scrutiny via subordinate-legislation machinery. Ordinance replacement needs a **law**, not merely an approving resolution.
- **Executive:** questions, discussions, motions, assurances/petitions/subordinate-legislation committees; Council collectively responsible **to LS**, although both scrutinise.
- **Financial:** pre-spending budget control; post-spending **PAC, Estimates, Public Undertakings Committees** and CAG-assisted scrutiny; Estimates also suggests economies, not merely post-mortem audit.
- **Constituent:** simple-majority changes outside 368; 368 special majority; specified federal provisions +half States. **Basic structure, Kesavananda Bharati 1973**, limits amendment. **169:** Assembly requests Legislative Council creation/abolition, Parliament legislates; not a State power to introduce 368 amendments.
- **Judicial/quasi-judicial:** President impeachment, VP removal, prescribed removal addresses for judges/CAG/CEC and SEC protection; contempt/privilege proceedings.

- **Electoral:** elected MPs participate in presidential election with elected eligible MLAs; **all MPs** elect VP; Houses elect their presiding officers except ex-officio RS Chairman; Parliament regulates elections by laws including RPA 1950/1951 and 1952 Presidential/VP Elections Act.
- **Other:** national deliberation, emergency approvals, State boundary/name changes, judiciary jurisdiction/organisation and common HC arrangements within constitutional limits.
- Weak control factors: complex administration/financial demands; limited time/expertise; executive agenda/majority/whip dominance; large House; retrospective audit; guillotine; extensive delegated laws/ordinances; intermittent political scrutiny; weak Opposition and poor parliamentary conduct.
- Mains remedies: committee scrutiny/expertise, timely reports and follow-up, more debate/divisions, stronger Opposition participation and transparent fiscal information.

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20. RS: equal, weaker and distinctive powers

- **Broadly equal:** ordinary Bills; constitutional amendments; Financial II introduction/passage and Financial I passage; presidential election/impeachment; VP election; prescribed removal addresses; emergency approvals; ordinance-replacing legislation; constitutional-body reports and institutional jurisdiction laws. Members of either House may become PM/ministers; accountability still to LS.
- **Weaker:** Money Bill introduction/recommendations; no grant votes; cannot dismiss Council by no-confidence or use LS adjournment motion; no LS-only National Emergency disapproval; Speaker certifies Money Bills/chairs joint sittings; LS numerical advantage in joint votes.
- **Distinctive:** 249 State-List authorisation; 312 new All-India Service resolution; initiates **VP removal**. During LS dissolution, RS approval can temporarily preserve **352/356/360** proclamations; reconstituted LS must approve within relevant **30-day constitutional window**, not permanently excluded.
- Value: revises rushed legislation; federal representation; expert nominees; continuity during dissolution. Compared with UK Lords and US Senate, RS is broadly coequal in legislation but limited in finance/executive confidence; not redundant merely because powers differ.

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21. Privileges, contempt and constitutional limits

- **105 privileges:** functional safeguards for Houses, committees and members; extend to authorised parliamentary participants such as ministers/AG, **not President merely as constituent of Parliament**.
- **Collective:** authorised publication; exclude strangers/secret sittings; own procedure; punish privilege breach/contempt (reprimand/admonition, imprisonment, member suspension/expulsion); information about members' arrest/detention/release; inquiries, witnesses/records; precinct arrests/legal process subject to chair permission.
- **Individual:** speech/vote immunity for parliamentary/committee acts subject to Constitution/House rules; **civil-arrest protection** during session and **40 days before/after**, not criminal arrest/preventive detention; session-related protection concerning court attendance/jury service is functional, not general exemption from courts.
- **121:** judicial conduct in discharge of duties discussed only on removal-address motion. **122:** courts do not review mere procedural irregularity; **substantive illegality/unconstitutionality remains reviewable**.
- **361A, 44th Amendment:** substantially true reports protected unless malicious; **secret sittings excluded**. Authorised House publications separately protected; press protection is not unlimited.
- **Sita Soren, 2024:** bribery for speech/vote has **no 105(2)/194(2) immunity**; reversed contrary P.V. Narasimha Rao position. Speech immunity does not legalise corruption. Supreme Court e-Committee newsletter.

- **Breach:** violation of specific privilege. **Contempt:** broader obstruction/undermining House/member/officer's functions; every breach is contempt, not every contempt a specific breach (e.g., disobeying lawful House order).
- Privilege sources: Constitution, statutes, House rules, conventions, judicial interpretation. 105 originally referenced Commons privileges on **26 January 1950**; **44th Amendment**, operative change **20 June 1979**, replaced direct reference with existing Indian privileges; no exhaustive general codification.
- Chapter historical illustrations: Indira Gandhi expelled/imprisoned by sixth LS, rescinded by seventh; K.K. Tiwari reprimanded by RS **1990**. These illustrate sanctions, not ordinary party discipline.
- **India ≠ Dicey's sovereign Parliament:** written supreme Constitution, federal distribution, judicial review, enforceable Fundamental Rights and basic-structure limit. UK doctrine: Parliament can legislate/repeal, change constitutional law by ordinary legislation, and primary Acts generally cannot be invalidated simply as unconstitutional. **Do not infer UK has no judicial review or no rights laws**: executive action is reviewed, and Human Rights Act 1998 protects rights through its statutory framework. UK Parliament.

22. Seat allocation reference

RS / LS / SC / ST below refer to allocated RS seats, elected LS seats and LS seats reserved for SC/ST in the chapter's table; vacancy counts are different. A dash means no allocated/reserved seat.

State / UT	RS	LS	SC	ST
Andhra Pradesh	11	25	4	1
Arunachal Pradesh	1	2	-	-
Assam	7	14	1	2
Bihar	16	40	6	-
Chhattisgarh	5	11	1	4
Goa	1	2	-	-
Gujarat	11	26	2	4
Haryana	5	10	2	-
Himachal Pradesh	3	4	1	-
Jharkhand	6	14	1	5
Karnataka	12	28	5	2
Kerala	9	20	2	-
Madhya Pradesh	11	29	4	6
Maharashtra	19	48	5	4
Manipur	1	2	-	1
Meghalaya	1	2	-	2
Mizoram	1	1	-	1
Nagaland	1	1	-	-
Odisha	10	21	3	5
Punjab	7	13	4	-
Rajasthan	10	25	4	3
Sikkim	1	1	-	-
Tamil Nadu	18	39	7	-
Telangana	7	17	3	2
Tripura	1	2	-	1
Uttarakhand	3	5	1	-
Uttar Pradesh	31	80	17	-

State / UT	RS	LS	SC	ST
West Bengal	16	42	10	2
Andaman & Nicobar	-	1	-	-
Chandigarh	-	1	-	-
Dadra & Nagar Haveli and Daman & Diu	-	2	-	1
Delhi	3	7	1	-
Lakshadweep	-	1	-	1
Puducherry	1	1	-	-
Jammu & Kashmir	4	5	-	-
Ladakh	-	1	-	-
Nominated	12	-	-	-
Total	245	543	84	47

23. LS and Speaker chronology

- **LS 1–5:** 1952–1957; 1957–1962; 1962–1967; 1967–1970; 1971–1977. First three dissolved 38/40/44 days early; fourth one year 79 days early; fifth exceptional Emergency extension.
- **LS 6–10:** 1977–1979 (2y4m28d); 1980–1984 (20 days early); 1985–1989 (48 days early); 1989–1991 (1y2m25d); 1991–1996.
- **LS 11–17:** 1996–1997 (1y6m13d); 1998–1999 (1y1m4d); 1999–2004 (253 days early); 2004–2009; 2009–2014; 2014–2019; **2019–2024**, replacing chapter's “continuing”. **18th LS constituted 2024**.
- **Speakers 1–5:** G.V. Mavalankar 1952–1956 (died), Ayyangar 1956–1957/1957–1962; Hukum Singh 1962–1967; N. Sanjiva Reddy 1967–1969 (resigned), G.S. Dhillon 1969–1971/1971–1975 (resigned), B.R. Bhagat 1976–1977.
- **6–10:** N. Sanjiva Reddy 1977 (resigned), K.S. Hegde 1977–1980; Balram Jakhar 1980–1985/1985–1989; Rabi Ray 1989–1991; Shivraj Patil 1991–1996.
- **11–18:** P.A. Sangma 1996–1998; G.M.C. Balayogi 1998–1999/1999–2002 (died); Manohar Joshi 2002–2004; Somnath Chatterjee 2004–2009; **Meira Kumar 2009–2014 (first woman Speaker)**; Sumitra Mahajan 2014–2019; Om Birla 2019–2024, **re-elected 2024**. Historical year ranges do not establish exact tenure dates.

24. One-minute recall

- **LS 550 ceiling/543 seats; RS 250 ceiling/245 allocation. 18 vote, 25 LS, 30 RS; LS 5 years, RS member 6; quorum 1/10.**
- **Money: only 110 subjects, LS first, RS 14 days, no joint sitting/return. Financial I: LS first, RS equal passage. Financial II: either House first, recommendation before passage.**
- **President removal 2/3 TOTAL; Emergency/amendment majority TOTAL +2/3 present/voting; Speaker removal effective; confidence simple.**
- **Policy cut TO ₹1; token cut BY ₹100; economy BY specified amount. Charged: discussion, no vote; grants LS; appropriation still needed.**
- **Adjournment = sitting; prorogation = session; dissolution = LS. Six-month Bill delay ≠ lapse; Article 122 ≠ blanket immunity; bribery ≠ privilege.**

References

- Constitution · Digital Sansad · RS Question Hour.
- 1977 Opposition Leader Act · MP allowance revision · Provisional Collection of Taxes Act 2023.